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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 23-10-2026

CORAM

THE HON'BLE MR.JUSTICE N.RAMESH

CRL OP No. 30761 of 2026

CNR: {HCMA012563162026}

Surya
S/o Ramesh,
No.62, Anjineyar Koil Street,
Kasinathapuram, Pattabiramapuram,
Thiruvallur District.

Case QR

..Petitioner(s)

Vs

The State Rep. by, The Inspector of Police
Thiruttani Police Station,
Thiruvallur District.
Crime No.492 of 2026.

..Respondent(s)

PRAYER : Criminal Original Petition filed under Section 483 of Bharatiya Nagarik Suraksha Sanhita, 2023, to enlarge the Petitioner on bail pending investigation in Cr.No.492 of 2026 on the file of Respondent Police and thus render justice.

For Petitioner(s): Mr.V.Manimaran

For Respondent(s): Mr.M.M.I. Khaleel
Government Advocate (Crl.Side)

ORDER

The petitioner, who was arrested and remanded to judicial custody on 09.09.2026 for the alleged offences under Sections 126(2), 296(b), 118(1), 351(3) and 109(1) of BNS in Crime No.492 of 2026 on the file of the respondent police, seeks bail.

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2. The case of the prosecution is that, due to previous enmity, the petitioner along with other accused abused and assaulted the defacto complainant's son with knife, thereby causing injuries to him. Hence, the case.

3. The learned counsel appearing for the petitioner submitted that the petitioner is innocent and he has been falsely implicated in the present case and that he has not committed any offence as alleged by the prosecution. He further submitted that the petitioner has been in judicial custody since 09.09.2026 and that he is ready to abide by any conditions that may be imposed by this Court. Hence, he prays for grant of bail to the Petitioner.

4. Per contra, the learned Government Advocate (Criminal Side) appearing for the Respondent Police, while opposing the grant of bail to the petitioner, reiterated the prosecution case and, on instructions, submitted that the petitioner has 10 previous cases pending against him and that the injured has already been discharged from the hospital. However, he opposed the grant of bail to the Petitioners.

5. At this juncture, the learned counsel for the petitioner submitted that Gnanaprakash and Sakthivel, have already been granted anticipatory bail by the Sessions Court. He further submitted that, out of the ten previous cases registered against the petitioner, he has been acquitted in four cases.

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6. I have given my anxious consideration to either side submissions and perused the materials available on record.

7. From the submissions made by the learned Government Advocate (Crl.Side), it is seen that though the petitioner has 10 previous cases pending against him, in most of the cases, he was granted bail. Considering the nature of the allegations levelled against the petitioner, the period of incarceration already undergone, the fact that the injured was already discharged from the hospital and that the co-accused have already been released on bail by the Sessions Court, this Court is inclined to enlarge the petitioner on bail subject to certain conditions.

8. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a s**um of Rs.25,000/- (Rupees Twenty Five Thousand only) with two sureties each, for a like sum to the satisfaction of the learned Judicial Magistrate, Thiruttani, and on further conditions that:**

[a] the sureties shall affix their photographs and Left Thumb Impression in the Application for Surety ship [Judicial Form No.46 annexed to 'The Criminal Rules of Practice, 2019']. The learned Magistrate shall obtain a copy of any one of the identity proofs to ensure their identity;

[b] the petitioner shall report before the respondent police daily at 10.30 a.m., until further orders;

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[c] the petitioner shall not abscond either during investigation or trial;

[d] the petitioner shall not tamper with the evidence or witness either during investigation or trial;

[e] On breach of any of the aforementioned conditions, the learned Magistrate/Trial Court is entitled to pass appropriate orders against the petitioner in accordance with law as if the aforementioned conditions have been imposed and the petitioner released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in **P.K.Shaji vs. State of Kerala [(2005)13 SCC 283];**

[f] If the accused thereafter absconds, a fresh FIR can be registered under Section 269 of B.N.S.

23-10-2026

DRL

Note:

1. Registry is directed to forthwith upload this order in the Official Website of this Court.

2. All concerned to act on this order being uploaded in Official Website of this Court without insisting on certified hard copies. To be noted, this order when uploaded in the official website of this Court will be watermarked and will also have a QR code.

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To

1.The Judicial Magistrate,
Thiruttani.

2. The Inspector of Police
Thiruttani Police Station,
Thiruvallur District.

3.The Superintendent,
Central Prison, Puzhal.

4.The Public Prosecutor,
High Court, Madras.

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N.RAMESH, J.

DRL

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